

25NWLC23115 25NWLC23115

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25NWLC23115 Hearing Date: August 27, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Creditors Adjustment

Bureau, Inc. Motion to Enforce Settlement is granted. Judgment is to be entered in Plaintiff's favor and against Defendant Paul Hutcherson aka Paul Henry Hutcherson dba Hutcherson Construction in the amount of \$20,550.63 principal, less payments in the sum of \$6,174.76, for the total sum of \$14,375.87, plus \$895.37 in interest, \$1,750.00 in attorney's fees, and costs of \$527.74, for a total judgment of \$20,548.98.

Plaintiff is to file and serve a proposed judgment in accordance with this ruling within 20 days.

Analysis:

On May 6, 2025, Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") filed this subrogation action against Defendant Paul Hutcherson aka Paul Henry Hutcherson dba Hutcherson Construction ("Defendant"). On February 5, 2026, Plaintiff filed a Mutual General Release and Settlement Agreement and the instant Motion to Set Aside Dismissal and Enter Judgment. The Motion initially came for hearing on July 22, 2026, at which time the Court continued the matter for further briefing addressing (1) the basis for the costs claimed in the sum \$717.84, and (2) the calculation of the claimed interest in the sum of \$2,347.68. (Minute Order, 07/22/26.)

Plaintiff filed and served a supplemental declaration on July 27, 2026. To date, no opposition to the Motion has been filed.

Discussion

The instant Motion is brought under Code of Civil Procedure, section 664.6, which states in relevant part:

If parties to pending litigation

stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc., § 664.6, subd.

(a).) "Parties" include "an attorney who represents the party" and an insurer's agent. (Code Civ. Proc., § 664.6, subd. (b).) The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.) The settlement agreement complies with the statutory requirements set forth above because it was signed by both parties. (Motion, Aposhian Decl., Exh. 1, p. 3.)

The settlement provides that

Defendant would pay Plaintiff \$9,262.13 in three installment payments due on July 14, 2025, August 14, 2025, and September 14, 2025. (Id. at Exh. 1,

¶1.) The settlement agreement also provides that in the event of Defendant's default, Plaintiff may seek judgment in the full amount of liability (\$20,550.63), plus interest, costs, and attorney's fees. (Id. at Exh. 1, ¶2.) A total of \$6,174.76 was paid towards the settlement, after which Defendant defaulted. (Id.

at ¶3.) Therefore, Plaintiff is entitled to judgment in the amount of \$20,550.63 principal, less payments in the sum of \$6,174.76. (Id. at Exh. 1, ¶2.) Plaintiff is also entitled to the attorney's fees and costs it incurred to enforce the Settlement Agreement. (Id., at Exh. 1, ¶10.) Counsel's declaration attests to 2.5 hours of attorney time billed

at \$700 per hour, for a total of \$1750.00. (Motion, Aposhian Decl., ¶¶4-6.) The supplemental declaration now demonstrates that Plaintiff incurred costs on the action in the amount of \$527.74 for filing fees and service of process. (Motion, Supp. Aposhian Decl., ¶3.) Finally, Plaintiff seeks interest in the revised amount of \$895.37, calculated at ten

percent per annum on the defaulted amount. (Id. at ¶4 and Exh. 2.)

Conclusion

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Moving party to give notice.